

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Dever	Team: Team # 1	CCRB Case #: 200501298	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 02/02/2005 2:45 PM	Location of Incident: 1) C/O Georgia and Riverdale Aves. 2) I/O the 75th Pct. Stationhouse 3) I/O § 87(2)(b)	18 Mo. SOL 8/2/2006	Precinct: 75		
Date/Time CV Reported Wed, 02/02/2005 4:07 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/07/2005 12:10 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Langlois	26882	930529	75th Precinct
2. POM James Ryan	07539	931122	75th Precinct
3. POM Vincent Fontana	15144	931673	75th Precinct
4. SGT Jennery Rios	04371	918219	75th Precinct
5. An officer			75th Precinct
6. POM Albert Marvelli	13476	927148	75th Precinct
7. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anthony Vidot	31257	931380	75th Precinct
2. POM Allan Cruz	12930	899095	75th Precinct
3. POM Anthony Chow	19046	932462	75th Precinct
4. POM Brent Robson	26221	916556	75th Precinct
5. SGT Edward DaSilva	04667	897296	Emergency Service Squad 7

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jennery Rios	Abuse: Sergeant Jennery Rios authorized the stop of § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . POM Vincent Fontana	Abuse: Police Officer Vincent Fontana searched § 87(2)(b) at the corner of Georgia and Riverdale Avenues.	B . Exonerated
C . POM James Ryan	Abuse: Police Officer James Ryan searched § 87(2)(b) at the corner of Georgia and Riverdale Avenues.	C . Miscellaneous - Subject Resigned
D . POM Vincent Fontana	Abuse: Police Officer Vincent Fontana refused to provide his name and shield number to § 87(2)(b) at the corner of Georgia and Riverdale Avenues.	D . Unsubstantiated
E . POM James Ryan	Abuse: Police Officer James Ryan refused to provide his name and shield number to § 87(2)(b) at the corner of Georgia and Riverdale Avenues.	E . Miscellaneous - Subject Resigned
F . POM James Ryan	Discourtesy: Police Officer James Ryan spoke obscenely and/or rudely to § 87(2)(b) at the corner of Georgia and Riverdale Avenues.	F . Miscellaneous - Subject Resigned
G . POM Vincent Fontana	Force: Police Officer Vincent Fontana used physical force against § 87(2)(b) and § 87(2)(b) at the corner of Georgia and Riverdale Avenues.	G . Exonerated

Officer(s)	Allegation	Investigator Recommendation
H . POM Michael Langlois	Force: Police Officer Michael Langlois used physical force against § 87(2)(b) at the corner of Georgia and Riverdale Avenues.	H . Exonerated
I . POM Albert Marvelli	Force: Police Officer Albert Marvelli used physical force against § 87(2)(b) at the corner of Georgia and Riverdale Avenues.	I . Exonerated
J . POM James Ryan	Force: Police Officer James Ryan used physical force against § 87(2)(b) and § 87(2)(b) at the corner of Georgia and Riverdale Avenues.	J . Miscellaneous - Subject Resigned
K . POM Vincent Fontana	Force: Police Officer Vincent Fontana struck § 87(2)(b) with an asp at the corner of Georgia and Riverdale Avenues.	K . Exonerated
L . An officer	Discourtesy: An officer acted rudely toward § 87(2)(b) in a marked police vehicle.	L . Officer(s) Unidentified
M . An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b) in a marked police vehicle.	M . Officer(s) Unidentified
N . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force in a marked police vehicle.	N . Officer(s) Unidentified
O . Officers	Discourtesy: Officers spoke obscenely and/or rudely to § 87(2)(b) at the corner of Georgia and Riverdale Avenues, inside the 75th Precinct stationhouse and inside § 87(2)(b)	O . Unfounded
P . Officers	Force: Officers used physical force against § 87(2)(b) inside the 75th Precinct stationhouse.	P . Exonerated
Q . POM Vincent Fontana	Abuse: Police Officer Vincent Fontana strip-searched § 87(2)(b) inside the 75th Precinct stationhouse.	Q . Unsubstantiated
R . POM James Ryan	Abuse: Police Officer James Ryan strip-searched § 87(2)(b) inside the 75th Precinct stationhouse.	R . Miscellaneous - Subject Resigned

Synopsis

On 2-2-05, LT Thomas Hilbert of the 75th Precinct called the IAB Command Center and reported that officers from the 75th Precinct Street Narcotics Enforcement Unit (SNEU) had arrested § 87(2)(b) earlier that day. § 87(2)(b) resisted arrest and had to be subdued. § 87(2)(b) suffered a minor scratch to his lip and complained of pain to his arm. § 87(2)(b) was judged to be an emotionally disturbed person. Officers from the Emergency Service Unit forcibly removed § 87(2)(b) from his cell and EMS transported him to § 87(2)(b). This case was subsequently referred to the CCRB. The undersigned investigator interviewed § 87(2)(b) and his friend, § 87(2)(b) who was also arrested. The officers who stopped § 87(2)(b) and § 87(2)(b) POs Vincent Fontana and James Ryan, were interviewed. They stated that other officers assigned to SNEU, later identified as SGT Jennery Rios and PO Allan Cruz, observed § 87(2)(b) engage in a narcotics transaction and that § 87(2)(b) attempted to interfere with § 87(2)(b)'s arrest. The undersigned also interviewed SGT Rios and PO Cruz, as well as three other SNEU officers, POs Albert Marvelli, Anthony Vidot and Michael Langlois. § 87(2)(b)'s medical records, as well as police documents pertaining to this incident, were obtained.

It has been determined that § 87(2)(b) and § 87(2)(b) were stopped after the SNEU supervisor, SGT Jennery Rios, observed § 87(2)(b) give currency to an unapprehended individual in exchange for a small green object. She put the descriptions of § 87(2)(b) and § 87(2)(b) over the radio and POs Fontana and Ryan stopped them. § 87(2)(g) . It is therefore recommended that SGT Rios's authorizing the stop of § 87(2)(b) and § 87(2)(b) be closed as unsubstantiated. § 87(2)(b) POs Fontana and Ryan § 87(2)(g) § 87(2)(b) searched § 87(2)(b) it is recommended that that allegation be closed as exonerated.

§ 87(2)(b) was highly agitated and uncooperative and offered strong physical resistance not only on the street, but also in the stationhouse. The officers, especially PO Fontana, § 87(2)(g) testified about the force that they used to subdue and handcuff § 87(2)(b). It is therefore recommended that the force allegations be closed as exonerated. § 87(2)(g)

§ 87(2)(b) . It is therefore recommended that the allegation that PO Fontana refused to provide his name and shield number be closed as unsubstantiated. § 87(2)(g)

it is recommended that the discourtesy allegation be closed as unfounded.

§ 87(2)(b) said that a white male officer drove him to the stationhouse in a marked Ford Explorer and a black male officer was in the passenger seat. He alleged that the white officer repeatedly stopped short, which caused his head to strike the partition between the front and back seats. The officers who were assigned to that vehicle were identified as POs Anthony Chow, who is black and Brent Robson, who is white. However, PO Robson went to the hospital for an injury before the incident. PO Chow stated that he responded to the incident, but did not have a memo book entry identifying the officer who replaced PO Robson as his partner. § 87(2)(g)

§ 87(2)(b) it is recommended that they be closed as officer unidentified. § 87(2)(b) alleged that POs Fontana and Ryan strip-searched him at the stationhouse. § 87(2)(g)

§ 87(2)(g) . It is therefore recommended that the allegation that PO Fontana strip-searched § 87(2)(b) be closed as unsubstantiated.

Since PO Ryan resigned from the NYPD after this incident, it is recommended that the allegations against him be closed as miscellaneous – subject resigned.

Summary of Complaint

§ 87(2)(b) (encl. # 14-14D)

§ 87(2)(b) is a § 87(2)(b) black male. § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on 2-15-05. He stated that on 2-2-05 at about 2:45 PM, he and his friend of two years, § 87(2)(b) were walking on Georgia Avenue between Riverdale and Livonia Avenues. They were going to their residence at § 87(2)(b) when they ran into three other friends on Livonia Avenue between Pennsylvania Avenue and Sheffield Avenue. § 87(2)(b) stated that he and § 87(2)(b) shook hands with the group and briefly spoke to them, but did not exchange anything with them. They then walked about two blocks, turned onto Georgia Avenue and began walking toward Riverdale Avenue.

At that point, two plainclothes police officers, later identified as POs Vincent Fontana and James Ryan of the 75th Precinct, ran up to them. The officers went straight to § 87(2)(b) and grabbed him, slammed him against a fence and began to search his pockets. § 87(2)(b) and § 87(2)(b) asked the officers what the problem was. PO Ryan responded, “Shut the fuck up, keep moving!” § 87(2)(b) first stated that he was four to seven feet away from § 87(2)(b). § 87(2)(b) denied making physical contact with the officers while they were dealing with § 87(2)(b). § 87(2)(b) used his cellular phone to call § 87(2)(b) who told him to get the officers’ badge numbers and the precinct they belonged to. § 87(2)(b) asked PO Ryan for the information, but he said, “Shut the fuck up!” § 87(2)(b) then asked PO Fontana, who replied, “Brooklyn North Task Force.” Neither officer provided their name or badge number. PO Ryan approached § 87(2)(b) and said, “Didn’t I tell you to get the fuck out of here?” and § 87(2)(b) responded, “You can’t be talking to people like that.” PO Ryan used a cellular phone to make a call and said, “The guy with the black jacket on the corner needs to be dealt with.”

Seconds later, two marked police vehicles, a marked car and a marked Ford Explorer, arrived at the scene with two unmarked vehicles, a black van and a red van. Four officers, including PO Ryan, grabbed § 87(2)(b) and slammed him against the fence, pulled his right arm behind his back and handcuffed it. § 87(2)(b) held his left hand in front of him, but denied doing that to prevent the officers from handcuffing him. PO Fontana repeatedly struck his left hand with an asp. § 87(2)(b) felt another officer choking him from behind. The officers threw § 87(2)(b) face down to the ground and the struggle spilled into the yard of the house. Officers forcefully wrenched § 87(2)(b)’s left arm behind his back and handcuffed him. § 87(2)(b) denied resisting at any point.

After § 87(2)(b) was handcuffed, the officers brought him to his feet and slammed him against the inside of the fence and then against a van. Two other plainclothes officers brought § 87(2)(b) to a marked Ford Explorer, which was parked on Georgia Avenue. § 87(2)(b) was placed inside the unmarked red van. § 87(2)(b) was placed into the backseat of the marked Ford Explorer behind the driver seat. Two officers wearing blue uniforms were in the front. A white male officer in his twenties with brown hair was driving and a black male officer was in the passenger seat. A plexiglass partition with a caged window separated the front and back seats. The officers did not put a seat belt on § 87(2)(b). The driver said, “You’re a caged animal now” and § 87(2)(b) replied, “Fuck you!” The driver also told him that they would kill him at the precinct if he kept running his mouth. § 87(2)(b) said that if this was what his ancestors were put through, the officer might as well kill him now and send him to them. The officer in the

driver seat told him not to worry about it because they would take care of that in the stationhouse. At that point, the white officer began driving on Georgia Avenue toward Livonia Avenue. The driver repeatedly hit the brakes, causing § 87(2)(b)'s head to strike the plexiglass partition. As he did that, the driver said, "Yeah, you fucker!"

When § 87(2)(b) arrived at the stationhouse, he was placed in a cell by himself and his handcuffs were left on. Shortly afterward, two other uniformed officers entered § 87(2)(b)'s cell, ordered him to turn around and removed his handcuffs. At that point, the officers shoved him and said, "Yeah motherfucker, you're in our house now." § 87(2)(b) replied, "Fuck you!" § 87(2)(b) stated that the pain in his arms worsened after his handcuffs were removed and he had a cut on one of his legs. § 87(2)(b) screamed that his arms were broken and that he needed to go to the hospital. Several officers said, "Shut the fuck up! You want more?" § 87(2)(b) also began protesting and an officer punched him in the mouth. However, § 87(2)(b) added that he did not witness that, but heard § 87(2)(b) yell that someone had punched him. ESU officers arrived in the cell area, told § 87(2)(b) to "Shut the fuck up," slammed him to the ground and placed him in a restraint bag. § 87(2)(b) was carried outside and placed into an ambulance. § 87(2)(b) was transported to § 87(2)(b).

At the hospital, § 87(2)(b) continued to scream in pain. POs Fontana and Ryan were at the hospital. § 87(2)(b) said that he was "raging" at that point and demanded to be given pain medication. § 87(2)(b) stated that PO Fontana cursed at him in the hospital, but added that medical personnel were not present when that occurred.

§ 87(2)(b) stated that officers in his neighborhood regularly stop people and search them for no reason and tell people to "Shut the fuck up!" when they ask them questions.

Results of Investigation

§ 87(2)(b) (encl. # 15-15C)

§ 87(2)(b) is a § 87(2)(b) black male. § 87(2)(b)

§ 87(2)(b) stated that on the afternoon of 2-2-05, he and § 87(2)(b) were walking to their residence at § 87(2)(b). They were near corner of Georgia and Riverdale Avenues when two plainclothes police officers stopped them. One of the officers, later identified as PO Fontana, stood about 6'2" tall and had brown hair. The other officer, later identified as PO Ryan, stood about 5'7" tall and had black hair. POs Fontana and Ryan accused § 87(2)(b) of selling narcotics, pushed him against a fence and began searching the pockets of his jacket. § 87(2)(b) estimated that § 87(2)(b) was about ten feet away from him at that point. § 87(2)(b) asked the officers why they were searching him and told them that they had no probable cause to do what they were doing. POs Fontana and Ryan ordered § 87(2)(b) to put his hands behind his back and then roughly threw him to the ground. PO Ryan put his knee in his back and handcuffed him. § 87(2)(b) asked them for their badge numbers, but PO Ryan responded by cursing. When asked what specific statement PO Ryan made, § 87(2)(b) replied that the short officer said, "Fuck you." § 87(2)(b) stated that he resisted arrest because he was not involved in any drug activity. The officers ordered § 87(2)(b) to back up and leave the area as they tried to handcuff § 87(2)(b) but § 87(2)(b) refused. One of the officers made a call on cellular phone, apparently to summon backup.

Upon handcuffing § 87(2)(b) POs Fontana and Ryan turned their attention to § 87(2)(b) and grabbed him. § 87(2)(b) struggled and held onto an iron gate to prevent the officers from handcuffing him. The officers took him to the ground and PO Fontana began striking his hands with a metal baton. § 87(2)(b) continued to resist by trying to stand up and pull away

from the officers. POs Fontana and Ryan tried to keep § 87(2)(b) on the ground. At that point, additional officers arrived and assisted them in handcuffing § 87(2)(b). § 87(2)(b) was subsequently placed in a marked Ford Explorer, which was on Georgia Avenue facing Riverdale Avenue. § 87(2)(b) was placed in an unmarked red van, which was also on Georgia Avenue facing Livonia Avenue. According to § 87(2)(b) the officers did not find narcotics on him or § 87(2)(b).

PO Fontana, PO Ryan and another officer, later identified as PO Albert Marvelli, entered the unmarked van where § 87(2)(b) was seated. § 87(2)(b) was driven away from the scene before § 87(2)(b). Upon entering the stationhouse, § 87(2)(b) was taken to the rear of the stationhouse and placed in a cell. POs Fontana and Ryan ordered § 87(2)(b) to remove all of his clothes, then to turn around and squat. § 87(2)(b) was subsequently told that he was being charged with § 87(2)(b) and responded that neither he nor § 87(2)(b) had marijuana on them. Shortly afterward, § 87(2)(b) saw officers escorting § 87(2)(b) into the cell area. § 87(2)(b) was bleeding from his face and mouth. § 87(2)(b) loudly protested that the officers had arrested them without cause and was not walking on his own volition, so the officers were pulling him along. When § 87(2)(b) protested, he was told to shut his mouth or else he would end up like § 87(2)(b). After being placed in a separate cell, § 87(2)(b) said that he wanted to go to the hospital. The officers initially told him that they would not take him. ESU officers later entered § 87(2)(b)'s cell and forcefully placed him into a restraint bag, which was strapped to a stretcher. § 87(2)(b) was carried out of the stationhouse. No physical force was used against § 87(2)(b) in the stationhouse. § 87(2)(b) stated that he felt pain in one of his feet as a result of the incident, but never sought medical attention.

Officer Testimony

On 2-2-05, the following officers were assigned to the 75th Precinct Street Narcotics Enforcement Unit (SNEU). The SNEU supervisor, SGT Jennery Rios, and PO Allan Cruz were in SGT Rios's private vehicle and were conducting observations of narcotics activity on Alabama Avenue between Dumont and Livonia Avenues. POs Fontana, Ryan and Marvelli were assigned to auto # § 87(2)(b) an unmarked red van, which was being used as the prisoner van. POs Vidot and Langlois were dressed in uniform and assigned to marked auto # 4175, which was being used as an apprehension vehicle.

Police Officers Vincent Fontana & James Ryan (encl. # 16-19B)

PO Fontana is a § 87(2)(b) white male § 87(2)(b). PO Ryan is a § 87(2)(b) white male § 87(2)(b). PO Ryan resigned from the NYPD on 8-9-05.

POs Fontana and Ryan were interviewed at the CCRB on 3-17-05 and 5-31-05. They stated that on 2-2-05 at about 2:45 PM, SGT Rios and PO Cruz were making observations of narcotics activity on Alabama Avenue between Livonia and Dumont Avenues. POs Fontana and Ryan were in their vehicle on Riverdale Avenue between Georgia and Alabama Avenues. The observing officers put over the description of two black males who had purchased narcotics and stated that they were walking southbound on Georgia Avenue toward Riverdale Avenue. The officers did not recall the specifics of the description. POs Ryan and Fontana drove to the corner of Riverdale and Georgia Avenues, left the vehicle and approached the two men, who were later identified as § 87(2)(b) and § 87(2)(b). PO Marvelli stayed in the van because other prisoners were in the van.

POs Fontana and Ryan identified themselves as police officers. In addition, their shields were visible and they were wearing raid jackets. PO Fontana spoke to § 87(2)(b) and PO Ryan

spoke to § 87(2)(b). When PO Fontana told them that they had been observed purchasing drugs, they became very confrontational and began cursing and screaming. § 87(2)(b) asked them what precinct they were from and PO Fontana stated that he told him their names, shield numbers and their precinct. He did not recall whether PO Ryan provided his name and shield number. PO Fontana asked § 87(2)(b) to put his hands behind his back and he complied. At that point, PO Fontana heard commotion and saw PO Ryan struggling with § 87(2)(b) grabbing his arms and trying to get his hands behind his back. § 87(2)(b) was flailing his arms and trying to push PO Ryan away from him. PO Fontana went over to assist PO Ryan, leaving § 87(2)(b) by himself. § 87(2)(b) was not handcuffed at that point. PO Fontana grabbed one of § 87(2)(b)'s arms and tried to pull it behind his back. The struggle went inside the fence and into the yard of a house. § 87(2)(b) tightly grabbed the fence with one of his hands and pulled himself against the fence, while using his other hand to push POs Fontana and Ryan away. PO Fontana did not know whether § 87(2)(b) attempted to interfere with § 87(2)(b)'s arrest. PO Fontana put an urgent call for assistance over the radio.

POs Fontana and Ryan were behind § 87(2)(b) trying to take his hand off the fence and pull his arms behind his back. PO Fontana was unable to pry his fingers off the fence, so he repeatedly punched § 87(2)(b)'s hand, but § 87(2)(b) maintained his grip on the fence. PO Fontana pulled out his asp, kept it in a closed position, wrapped his hand around it and punched § 87(2)(b)'s hand two or three additional times. When that did not work, PO Fontana hit § 87(2)(b) on the top of head with the end of the asp and he finally released the fence. They all fell to the ground and the struggle spilled back over to the other side of fence. § 87(2)(b) was on his side holding his hands against his chest. PO Langlois and two other officers assisted POs Fontana and Ryan in handcuffing § 87(2)(b). They brought him to his feet and restrained him against a car. § 87(2)(b) continued to struggle by moving his shoulders and shrug them off. Marked units had arrived at the scene by that time. PO Fontana placed § 87(2)(b) in a marked Ford Explorer. He did not know what officers were assigned to the Ford Explorer. PO Fontana did not see the Ford Explorer drive away from the scene. § 87(2)(b) was placed in the prisoner van. PO Fontana did not know whether § 87(2)(b) resisted arrest and did not know who handcuffed him. He believed that narcotics were recovered from § 87(2)(b) but did not know what officer recovered them.

POs Fontana, Ryan and Marvelli drove back to the stationhouse. PO Fontana saw § 87(2)(b) taken into the cell area, but had no interaction with § 87(2)(b) in the stationhouse. PO Fontana did not recall whether he searched § 87(2)(b) at the scene or at the stationhouse. PO Ryan did not know whether § 87(2)(b) was strip-searched. § 87(2)(b) refused to cooperate while in the stationhouse and screamed profanities. ESU was called to the stationhouse and put § 87(2)(b) in a restraint device. § 87(2)(b) was removed to § 87(2)(b) by ambulance. POs Fontana and Ryan were in the ambulance with § 87(2)(b) § 87(2)(b) continued to yell during the ride. They denied using force or profanity against § 87(2)(b) in the hospital. PO Fontana did not observe any new injuries to § 87(2)(b) but recalled that he had pre-existing injuries that were documented in his medical records.

When § 87(2)(b) was released, POs Fontana and Ryan took him back to the stationhouse in a marked van.

Police Officer Albert Marvelli (encl. # 35-35B)

PO Marvelli is a § 87(2)(b) white male § 87(2)(b)

PO Marvelli was interviewed at the CCRB on 5-4-05. He stated that on 2-2-05 at about 2:45 PM, he, PO Fontana and PO Ryan were in their vehicle when they received a radio transmission from observation post regarding two individuals walking southbound on Georgia Avenue from Livonia Avenue toward Riverdale Avenue. Two previously arrested prisoners were

already in the van. POs Marvelli, Ryan and Fontana announced over the radio that that they would stop the two males. PO Ryan parked the van on Riverdale Avenue one block west of Georgia Avenue, so the two men could not see the van. POs Ryan and Fontana left the van, walked on Riverdale Avenue and turned onto Georgia Avenue to stop them. PO Marvelli lost sight of them when they turned onto Georgia Avenue. About one minute later, they put over a radio transmission stating that they had the men stopped. PO Marvelli stayed in the van to guard the prisoners.

About five minutes later, PO Marvelli heard commotion and saw people running on Georgia. He also saw a marked police vehicle on Riverdale Avenue and told the officers inside to watch the prisoners in the van. He then left the van, ran onto Georgia Avenue and saw a large crowd of people. When he got closer, he saw § 87(2)(b) with his arms wrapped around the post of a wrought iron fence. POs Ryan and Fontana were trying to him off the post. § 87(2)(b) was behind POs Ryan and Fontana trying to push them off of § 87(2)(b). PO Fontana told PO Marvelli to arrest § 87(2)(b). PO Marvelli handcuffed § 87(2)(b) who then began kicking, twisting his body and screaming obscenities. § 87(2)(b) was moving so violently that he caused PO Marvelli to fall to the ground. PO Marvelli's pants ripped and sustained a cut to his knee. PO Marvelli did not go to the hospital for his injury, so a Line of Duty Injury Report was not prepared. PO Marvelli forcibly restrained § 87(2)(b) by grabbing his hands, turning away from POs Ryan and Fontana and § 87(2)(b) in the process. PO Marvelli did not see what was going on with § 87(2)(b) while he was dealing with § 87(2)(b). At that point, numerous additional officers responded and restrained § 87(2)(b).

Police Officers Anthony Vidot & Michael Langlois

The Arrest Report for § 87(2)(b) (encl. # 22-22A), prepared by PO Langlois, lists the charges against him as § 87(2)(a) 160.50

§ 87(2)(b) The narrative of the Arrest Report and the Complaint Report reads:

§ 87(2)(a) 160.50

PO Langlois noted that physical force was used during § 87(2)(b)'s arrest to "overcome assault."

§ 87(2)(a) 160.50

The Arrest Report for § 87(2)(b) (encl. # 29-29A), prepared by PO Langlois, states that he was charged with § 87(2)(b)

§ 87(2)(b) The narrative of the report reads, "At tpo, above perpetrator did physically interfere with arresting officer while arresting officer was arresting another associated perpetrator. Perpetrator also acted unruly and extremely violent towards arresting officer." PO Langlois noted that physical force was used during § 87(2)(b)'s arrest in order to "restrain, control and remove" him.

POs Langlois and Vidot were interviewed at the CCRB on 3-11-05 and 5-3-05 (encl. # 31-31A & # 33-33B). They stated that on 2-2-05 at 2:45 PM, they heard a radio transmission from either PO Cruz or SGT Rios, who were observing suspected narcotics transactions. They gave the descriptions of § 87(2)(b) and § 87(2)(b) and reported that they were walking south on Georgia Avenue. Seconds later, POs Fontana, Ryan and Marvelli announced that they were going to stop them. POs Vidot and Langlois drove on Georgia Avenue

to look for the officers. About two minutes later, PO Fontana yelled, "Georgia and Riverdale!" over the radio. POs Vidot and Langlois drove to that location and PO Langlois jumped out of the vehicle and ran toward the corner to assist POs Ryan, Fontana and Marvelli while PO Vidot watched three prisoners who were already in the prisoner van. PO Vidot entered the prisoner van, drove to the location and saw § 87(2)(b) being picked up off the ground. § 87(2)(b) was kicking, twisting his torso, yelling and cursing. POs Fontana and Langlois placed him against the back of a marked police car, but he continued to resist. PO Marvelli was standing with § 87(2)(b) who was loudly protesting, but not struggling. SGT Rios ordered them to put § 87(2)(b) and § 87(2)(b) in the prisoner van and they did so. After that, POs Vidot and Langlois left the scene and continued narcotics enforcement.

When POs Vidot and Langlois returned to the stationhouse at about 4:00 PM, § 87(2)(b) and § 87(2)(b) were at the desk. § 87(2)(b) was yelling, "This is fucked up!" and "You guys broke my fucking arms!" PO Vidot observed a bruise to § 87(2)(b)'s face, but did not see any other injuries. § 87(2)(b) was placed in a cell by himself and his handcuffs were kept on due to his demeanor. § 87(2)(b) was screaming, spitting and sweating profusely while in the cell. § 87(2)(b) asked to go to the hospital and SGT Rios told him that an ambulance had already been called. An unidentified sergeant gave PO Vidot shackles and told PO Vidot that shackles would have to be placed on § 87(2)(b)'s legs if he was going to be taken to the hospital.

PO Vidot returned to the cell area and opened the door to § 87(2)(b)'s cell. By that time, § 87(2)(b)'s handcuffs and jacket had been removed, but he was still screaming and yelling. He called PO Vidot a "fucking traitor" and said, "You work for white devils! You've fucking been brainwashed!" PO Vidot told him that an ambulance was coming to bring him to the hospital and that he would have to put shackles on. § 87(2)(b) yelled, "Fuck you, you ain't putting no shackles on me!" and spit at PO Vidot. PO Vidot denied cursing back at him and denied hearing any other officer using profanity toward § 87(2)(b).

ESU officers arrived shortly afterward and the ESU supervisor, SGT Edward DaSilva, stood behind a wall and peeked around the corner while he spoke to § 87(2)(b) because § 87(2)(b) was still spitting. § 87(2)(b) still refused to cooperate, so the ESU officers entered the cell and grabbed § 87(2)(b). § 87(2)(b) resisted by kicking and flailing his arms. The ESU officers pulled him out of the cell and strapped him into a restraint device. The restraint device was put on a stretcher, which was placed into the ambulance, and § 87(2)(b) was transported to the hospital.

Police Officer Allan Cruz & Sergeant Jennery Rios

SGT Rios prepared a Supporting Deposition for § 87(2)(b)'s arrest (encl. # 40-40A),

§ 87(2)(a) 160.50
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

PO Cruz and SGT Rios were interviewed at the CCRB on 10-26-05 and 10-28-05 (encl. # 38-38A & # 41-41A). They stated that on 2-2-05, they were making observations of hand-to-hand narcotics transactions on Alabama Avenue between Dumont to Livonia Avenues. They had made prior arrests for marijuana in that area. Their vehicle was parked facing south on Alabama Avenue. SGT Rios stated that she observed § 87(2)(b) hand currency to an unapprehended male, who then handed § 87(2)(b) a small unidentified object. PO Cruz stated

that he observed § 87(2)(b) and § 87(2)(b) but did not specifically recall what he saw them doing. PO Cruz and SGT Rios did not recall which one of them purchased the narcotics or was holding the money. They made the observation from about fifteen yards away. After observing the transaction, they put their descriptions and direction of travel over the radio to the other SNEU officers.

About five minutes later, PO Cruz and SGT Rios heard a call for assistance at Riverdale and Georgia Avenues. They drove to the location and saw a crowd of about ten people. PO Cruz and SGT Rios performed crowd control and kept people away from the corner. A group of officers piled on the ground and other officers were pulling them off the pile, but neither PO Cruz nor SGT Rios saw a physical struggle occurring. SGT Rios saw § 87(2)(b) being led to a vehicle in handcuffs. § 87(2)(b) was cursing and screaming and SGT Rios tried to calm him down to no avail.

PO Cruz and SGT Rios returned to the stationhouse from the scene. At the stationhouse, he went upstairs and completed paperwork unrelated to the arrests of § 87(2)(b) and § 87(2)(b). SGT Rios saw § 87(2)(b) and § 87(2)(b) at the desk. § 87(2)(b) was still agitated and belligerent and was struggling slightly. SGT Rios saw a cut on lip and heard him request medical attention, at which point an ambulance was called for him. Due to § 87(2)(b)'s demeanor, they wanted to shackle his legs during transport for their safety, but § 87(2)(b) refused to cooperate, so ESU officers forcibly put him in a restraint device and placed him into the ambulance. SGT Rios did not see § 87(2)(b) again.

Sergeant Edward DaSilva

The ESU Report regarding § 87(2)(b) (encl. # 47), prepared by a member of SGT DaSilva's ESU team, indicates that ESU received the job on 2-2-05 at 4:00 PM and completed it at 4:15 PM. LT Thomas Hilbert of the 75th Precinct is listed as the reporting officer. The narrative of the report reads as follows:

"Crew utilized EDP restraining straps and restraining blanket on a male prisoner. Individual refused to be fingerprinted and became violent, threatened MOS with violence and began spitting at MOS. EDP/Prisoner removed to § 87(2)(b) via EMS ambulance."

SGT DaSilva of ESU was interviewed at the CCRB on 11-10-05 (encl. # 48-48A). He stated that on 2-2-05 at about, he and other ESU officers responded to the 75th Precinct stationhouse regarding an unruly prisoner. When they arrived, the prisoner, a black male later identified as § 87(2)(b) was yelling and spitting inside a cell. Partially shielding himself behind a wall, SGT DaSilva spoke to § 87(2)(b) and attempted to calm him down. § 87(2)(b) demanded to be taken to the hospital, but when he was told to put on leg shackles because that is procedure, he became even more irate. At that point, SGT DaSilva and his ESU team entered the cell, grabbed § 87(2)(b) and subdued him so they could strap him into a restraint device. After securing § 87(2)(b) in the restraint device, § 87(2)(b) was placed in an ambulance and transported to the hospital. SGT DaSilva did not go to the hospital with him.

§ 87(2)(b) stated that after he was arrested, he was placed in a marked Ford Explorer and made allegations of misconduct against the driver of the vehicle, whom he described as a white male officer in uniform. According to records from NYPD Fleet Services, there are two marked Ford Explorers assigned to the 75th Precinct, which are numbered 5255 and 5171. The 75th Precinct Tour 2 Roll Call for 2-2-05 shows that SGT Michael Howery and PO Neil Maggio were assigned to vehicle # 5255, and POs Brent Robson and Anthony Chow were assigned to vehicle # 5171.

Sergeant Michael Howery & Police Officer Neil Maggio (encl. # 42-45A)

On 2-2-05, SGT Howery was the 75th Precinct Patrol Supervisor. PO Maggio was the sergeant's operator. They were assigned to vehicle # 5255, a marked Ford Explorer. SGT Howery and PO Maggio are both white males.

SGT Howery and PO Maggio have no memo book entries regarding this incident.

SGT Howery and PO Maggio were interviewed at the CCRB on 10-31-05. They stated that they did not respond to Georgia and Riverdale Avenues on 2-2-05 to assist SNEU officers with two arrests.

Police Officers Anthony Chow & Brent Robson

On 2-2-05, PO Chow and his partner, PO Robson, were assigned to sector JN using vehicle # 5171, a marked Ford Explorer. PO Robson is a white male and PO Chow is a black male.

PO Chow's memo book for 2-2-05 (encl. # 48B-48C) states that his partner was PO Robson. It does not indicate that anyone replaced PO Robson as his partner during his tour. PO Chow has no memo book entries regarding an incident at Georgia and Riverdale Avenues.

PO Chow was interviewed at the CCRB on 11-22-05 (encl. # 48D-48E). PO Chow stated that on 2-2-05 at about 2:45 PM, he and PO Robson were at another job when they heard a 10-85 come over the radio at Georgia and Riverdale Avenues. When POs Chow and Robson arrived, a man was hanging from the fire escape of a building and throwing objects that appeared to be pieces of a crack pipe. A lieutenant ordered PO Chow to stand by the bottom of the fire escape while other officers entered the building. The man was taken into custody and placed in a marked car. PO Chow did not know what officers were assigned to that car. PO Chow did not see any physical force used against the man. The man was not placed in PO Chow's vehicle and he did not transport any prisoners to the stationhouse. PO Chow did not see any other civilians under arrest. PO Chow stated that his vehicle was the only marked Ford Explorer at the scene. He and PO Robson did not assist other officers in arresting anyone.

PO Robson's memo book for 2-2-05 (encl. # 48F-48G) indicates that at 9:20 AM, he responded to a call for assistance regarding an emotionally disturbed person at § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

PO Robson was interviewed at the CCRB on 11-30-05 (encl. # 48H-48I). He stated that on 2-2-05 at 9:20 AM, he and PO Chow responded to a 10-85 on Blake Avenue. PO Robson received a line of duty injury at that location and PO Robson went to the hospital. PO Robson was therefore not present for the incident at Georgia and Riverdale Avenues. PO Robson did not know who replaced him as PO Chow's partner.

Medical Records

§ 87(2)(b) sent correspondence to the undersigned investigator, dated 11-28-05, which states that they were unable to find § 87(2)(b)'s medical records from 2-2-05 (encl. # 58).

Police Documents

§ 87(2)(b)'s Arrest Photograph was not available because there the charges against him are sealed. § 87(2)(b)'s Arrest Photograph (encl. # 49) shows no visible injuries.

The 75th Precinct Command Log for 2-2-05 (encl. # 49A) shows that § 87(2)(b) and § 87(2)(b) were brought into the stationhouse at 3:00 PM. Their physical and mental condition was listed as apparently normal. The Command Log entries for § 87(2)(b) and § 87(2)(b) do not indicate that they were strip-searched.

The 75th Precinct Tour 2 Roll Call from 2-2-05 (encl. # 51-51K) indicates that SGT Howery and PO Maggio were assigned to vehicle # 5255. It further shows that POs Chow and Robson were assigned to vehicle # 5171.

Disposition of Criminal Charges against § 87(2)(b) & § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Prior Bad Acts

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

CCRB Histories of Subject Officers (encl. # 5A-8)

SGT Rios has no substantiated CCRB cases on her record over nine years on the force. POs Fontana and Langlois have no substantiated CCRB cases on their records over three years on the force. PO Marvelli has no substantiated cases on his record over five years on the force.

Conclusions and Recommendations

Officer Identification

SGT Rios stated that she observed § 87(2)(b) and § 87(2)(b) approach an unidentified male, at which point § 87(2)(b) handed currency to the male and received a small green object in return. SGT Rios put over a radio transmission to the other SNEU officers providing the descriptions and direction of travel of § 87(2)(b) and § 87(2)(b). POs Fontana and Ryan subsequently stopped them. § 87(2)(b) and § 87(2)(b) testified that POs Fontana and Ryan used force against § 87(2)(b) at the outset of the stop. PO Fontana testified that he and PO Ryan were the officers who first stopped § 87(2)(b) and § 87(2)(b) and that they both used physical force against § 87(2)(b). PO Fontana also stated that he struck § 87(2)(b) with an asp.

§ 87(2)(g)
§ 87(2)(g). POs Marvelli and Langlois testified that they used force against § 87(2)(b) and § 87(2)(b) respectively § 87(2)(g).

§ 87(2)(g). SGT DaSilva stated that he supervised a team of ESU officers who used force to subdue § 87(2)(b) and place him in a restraint device inside the 75th Precinct stationhouse. § 87(2)(g)

§ 87(2)(b) alleged that numerous officers spoke obscenely to him at the scene of his arrest, at the stationhouse and at § 87(2)(b) § 87(2)(g)

Undisputed facts

It is undisputed that on 2-2-05, POs Fontana and Ryan stopped § 87(2)(b) and § 87(2)(b) on suspicion of narcotics possession. A physical altercation ensued and the officers called for assistance. Other SNEU officers responded, as well as patrol officers. Officers used physical force to arrest § 87(2)(b) and § 87(2)(b). In addition, PO Fontana repeatedly struck § 87(2)(b) with an asp. § 87(2)(b) and § 87(2)(b) were transported to the 75th Precinct stationhouse. ESU officers were subsequently called to the stationhouse for § 87(2)(b) who the officers stated was exhibiting behavior consistent with that of an emotionally disturbed person. ESU officers arrived and used force to subdue § 87(2)(b) and place him in a restraint device. EMS then transported § 87(2)(b) to § 87(2)(b)

§ 87(2)(g)

Credibility Analysis

§ 87(2)(g)

§ 87(2)(g)

A. Abuse of Authority: Sergeant Jennery Rios authorized the stop of § 87(2)(b) and

§ 87(2)(b)

POs Fontana and Ryan stopped § 87(2)(b) and § 87(2)(b) based on the information SGT Rios provided to them after she observed § 87(2)(b) hand currency to an unidentified individual for an unidentified green object. In New York Search and Seizure, Barry Kamins states:

“It should be noted that certain activity observed by the police may provide reasonable suspicion to stop an individual. Thus, when an officer observes an exchange of currency for an unidentified object, reasonable suspicion will arise if the exchange occurs in a drug-prone area...”

§ 87(2)(g)

§ 87(2)(b). Kamins discusses the standard for finding probable cause in drug cases:

“The court pointed out that even though in *McRay* it had identified a ‘telltale sign’ as a relevant factor, that factor was not indispensable to a probable cause assessment. Thus, even if the officer cannot observe a hallmark of drug activity, i.e., the container being exchanged, probable cause can exist if there is some other indicia of drug activity.”

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that allegation A be closed as unsubstantiated.

B. Abuse of Authority: Police Officer Vincent Fontana searched § 87(2)(b) at the corner of Georgia and Riverdale Avenues.

C. Abuse of Authority: Police Officer James Ryan searched § 87(2)(b) at the corner of Georgia and Riverdale Avenues.

§ 87(2)(b) and § 87(2)(b) stated that POs Fontana and Ryan began searching § 87(2)(b) at the outset of the stop. PO Fontana stated that he ordered § 87(2)(b) to put his hands behind his back, at which point he saw PO Ryan struggling with § 87(2)(b) and ran over to assist him. PO Fontana added that he did not recall searching § 87(2)(b) at the scene. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that allegation B be closed as exonerated. Since PO Ryan resigned from the NYPD since this incident, it is recommended that allegation C be closed as miscellaneous – subject resigned.

D. Abuse of Authority: Police Officer Vincent Fontana refused to provide his name and shield number to § 87(2)(b) at the corner of Georgia and Riverdale Avenues.

E. Abuse of Authority: Police Officer James Ryan refused to provide his name and shield number to § 87(2)(b) at the corner of Georgia and Riverdale Avenues.

§ 87(2)(b) testified that PO Fontana did not provide his name and shield number when he requested it. PO Fontana confirmed that § 87(2)(b) asked him for the information, but testified that he did provide it. § 87(2)(g)

It is therefore recommended that allegation D be closed as unsubstantiated.

Since PO Ryan resigned from the NYPD since this incident, it is recommended that allegation E be closed as miscellaneous – subject resigned.

F. Discourtesy: Police Officer James Ryan spoke obscenely and/or rudely to § 87(2)(b) at the corner of Georgia and Riverdale Avenues.

Since PO Ryan resigned from the NYPD since this incident, it is recommended that allegation F be closed as miscellaneous – subject resigned.

G. Force: Police Officer Vincent Fontana used physical force against § 87(2)(b) and § 87(2)(b) at the corner of Georgia and Riverdale Avenues.

H. Force: Police Officer Michael Langlois used physical force against § 87(2)(b) at the corner of Georgia and Riverdale Avenues.

I. Force: Police Officer Albert Marvelli used physical force against § 87(2)(b) at the corner of Georgia and Riverdale Avenues.

J. Force: Police Officer James Ryan used physical force against § 87(2)(b) and § 87(2)(b) at the corner of Georgia and Riverdale Avenues.

§ 87(2)(g)
§ 87(2)(b)
was taken to the sidewalk during the struggle. § 87(2)(g)
In *PD v. Hernandez, Lee, Maggio and McCusker* (2001), an Administrative Law Judge ruled:

“...this tribunal was not persuaded that excessive force was used against Mr. Behar...respondent’s were entitled to use reasonable force to effectuate the arrest...resistance to arrest raises the threshold level of reasonable force that may be used to effect the arrest. Given Mr. Behar’s state of intoxication and his belligerent attitude, this tribunal credits respondents’ testimony that he continued to vent his frustration and anger in protest of the officers’ intervention by resisting arrest. The most serious injuries suffered by Mr. Behar – those to his ear and forehead – seem to be consistent with falling on a metal grate during a struggle or twisting and turning on a metal grate while resisting handcuffing.”

§ 87(2)(g)
It is therefore recommended that allegations G through I be closed as exonerated.

Since PO Ryan resigned from the NYPD since this incident, it is recommended that allegation J be closed as miscellaneous – subject resigned.

K. Force: Police Officer Vincent Fontana struck § 87(2)(b) with an asp at the corner

of Georgia and Riverdale Avenues.

PO Fontana § 87(2)(g) testified that he repeatedly struck § 87(2)(b) in the hand with an asp to compel him to let go of a fence and submit to handcuffing. § 87(2)(g)

§ 87(2)(g) In *PD v. Stiso* (1999), an ALJ ruled,

“...this tribunal has often repeated its unwillingness to closely second guess the split second decisions of officers in difficult circumstances. Therefore, use of force in self-defense, or to effectuate an arrest, must be manifestly or obviously unreasonable in order to constitute misconduct. Accordingly, I find nothing improper in respondent’s use of force within the context of the events presented herein. This finding is consistent with several cases issued by this tribunal finding that a limited use of force, even with a weapon such as a nightstick, radio or flashlight, may be appropriate to effectuate an arrest or in self-defense.”

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that allegation K be closed as exonerated.

L. Discourtesy: An officer acted rudely toward § 87(2)(b) inside a marked police vehicle.

M. Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b) inside a marked police vehicle.

N. Abuse of Authority: An officer threatened § 87(2)(b) with the use of force inside a marked police vehicle.

PO Robson testified that he was at the hospital during the incident and provided memo book entries documenting that. PO Chow had no memo book entries indicating who replaced PO Robson as his partner. In addition, the Roll Call does not state who took PO Robson’s place. It is therefore recommended that allegations L through N be closed as officer unidentified.

O. Discourtesy: Officers spoke obscenely and/or rudely to § 87(2)(b) at the corner of Georgia and Riverdale Avenues, inside the 75th Precinct stationhouse and inside § 87(2)(b)

§ 87(2)(b) alleged that officers spoke discourteously to him at the scene of his arrest, at the stationhouse and at the hospital. § 87(2)(g)

§ 87(2)(g) it is recommended that allegation O be closed as unfounded.

P. Force: Officers used physical force against § 87(2)(b) inside the 75th Precinct stationhouse.

§ 87(2)(g)

§ 87(2)(g) It is recommended that allegation P be closed as exonerated.

Q. Abuse of Authority: Police Officer Vincent Fontana strip-searched § 87(2)(b) inside the 75th Precinct stationhouse.

R. Abuse of Authority: Police Officer James Ryan strip-searched § 87(2)(b) inside the 75th Precinct stationhouse.

Patrol Guide Procedure 208-05, regarding “Arrest – General Search Guidelines,” states:

“A strip-search will be utilized when the arresting officer reasonably suspects that weapons, contraband or evidence may be concealed upon the body or in the clothing in such a manner that they may not be discovered by the previous search methods. Other factors that should be considered in determining the necessity for a strip-search include the nature of the crime (serious violent felony), arrest circumstances, subject’s reputation (extremely violent person), acts of violence and discoveries from previous searches.”

SGT Rios stated that she did not observe § 87(2)(b) take part in the drug transaction. No narcotics were found on § 87(2)(b) and he was not charged with possessing narcotics. ■

§ 87(2)(g)

■ it is recommended that allegation Q be closed as unsubstantiated.

Since PO Ryan resigned from the NYPD since this incident, it is recommended that allegation R be closed as miscellaneous – subject resigned.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: